

Defendant Did Not Establish the Challenged Claim Arose From Protected Activity

“ ‘Initially, the moving defendant bears the burden of establishing that the challenged allegations or claims “aris[e] from’ protected activity in which the defendant has engaged. [Citations.]’ [Citation]” (*Wilson v. Cable News Network, Inc.* (2019) 7 Cal.5th 871, 884; see *Smith v. Adventist Health System/West* (2010) 190 Cal.App.4th 40, 50 [protected activity is defined as an act in furtherance of the right of petition or free speech].)

“As used in this section, ‘act in furtherance of a person’s right of petition or free speech under the United States or California Constitution in connection with a public issue’ includes: (1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law, (2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law, (3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest, or (4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.” (Code Civ. Proc., § 425.16, subd. (e).)

While section 425.16 does not define “an issue of public interest,” “ ‘[i]n each case where it was determined that a public issue existed, “the subject statements either concerned *a person or entity in the public eye* [citations], conduct that could directly affect a large number of people beyond the direct participants [citations] or a topic of widespread, public interest [citation].” ’ [Citations.]” (*Kieu Hoang v. Phong Minh Tran* (2021) 60 Cal.App.5th 513, 527.)

[T]he Legislature, when enacting section 425.16, expressed in the statute’s preamble a desire “to encourage continued participation in matters of public significance” [citation] does not imply the Legislature intended to impose, in the statute’s operative sections, an across-the-board “issue of public interest” pleading requirement. Construing clauses (1) and (2) of section 425.16, subdivision (e) as lacking such a requirement does not diminish their effectiveness in encouraging participation in public affairs. Any matter pending before an official proceeding possesses some measure of “public significance” owing solely to the public nature of the proceeding, and free discussion of such matters furthers effective exercise of the petition rights section 425.16 was intended to protect. The Legislature’s stated intent is best served, therefore, by a construction of section 425.16 that broadly encompasses participation in official proceedings, generally, whether or not such participation remains strictly focused on “public” issues.

(*Briggs v. Eden Council for Hope & Opportunity* (1999) 19 Cal.4th 1106, 1118.)

Both the “public forum” and “public interest” requirements are broadly construed. (*Hecimovich v. Encinal School Parent Teacher Organization* (2012) 203 Cal.App.4th 450, 464 [public interest]; *Damon v. Ocean Hills Journalism Club* (2000) 85 Cal.App.4th 468, 476 [public forum].)

“For purposes of the third category in subdivision (e) of section 425.16, a “public forum” is traditionally defined as a place that is open to the public where information is freely exchanged.’ [Citation.]” (*Lee v. Silveira* (2016) 6 Cal.App.5th 527, 539, citing *Damon v. Ocean Hills Journalism Club* (2000) 85 Cal.App.4th 468, 475.) Web sites accessible to the public, such as Internet “newsgroups,” are “public forums” for purposes of the anti-SLAPP statute. (*Barrett v. Rosenthal* (2006) 40 Cal.4th 33, 42, fn. 4; accord, *Muddy Waters, LLC v. Superior Court* (2021) 62 Cal.App.5th 905, 917-918.)

A public issue may be implicated when the content of the speech implicates the qualifications, competence and professional ethics of a professional. (*Yang v. Tenet Healthcare Inc.* (2020) 48 Cal.App.5th 939, 947; see *Carver v. Bonds* (2005) 135 Cal.App.4th 328, 343-344 [newspaper article about doctor was issue of public interest where information would assist others in choosing doctors].)

Defendant identifies two separate protected activities. However, neither support a finding that Defendant’s actions or conduct constitutes a protected activity under section 425.16, subdivisions (e)(3) or (e)(4) of the Code of Civil Procedure, which Defendant cites to in her Anti-SLAPP Motion.

First, Defendant refers to Department C23 of this Court’s denial of Plaintiff’s motion for summary judgment in a related lawsuit between Plaintiffs and Defendant Le. However, it is unclear to the Court how this purported protected activity pertains to Defendant, as she was neither the moving party nor the opposing party to that motion for summary judgment. (See Exhibit 3 to Request for Judicial Notice.)

In fact, it is not even clear to that Defendant was a party to that related matter. It is also not clear that the allegations in the related matter, including the allegedly defamatory statements at issue in that case, are the same as the one raised in Plaintiffs’ present lawsuit.

Further, while Defendant Ngo contends Department C23 of this Court “determined that the underlying conflict of [Plaintiff] and [Defendant Le] ... amount to a public controversy and was protected speech,” Defendant Ngo has merely asked the Court to take judicial notice of Department C23’s September 16, 2024 Minute Order.

While the Court may take judicial notice of the existence of Department C23’s Minute Order, as well as the truth of the results reached, namely, that Department C23 granted the motion for summary judgment in part, and denied it in part, it may not take judicial notice of the truth of hearsay statements in the minute order. (*Lockley v. Law Office of*